

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 01/22/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00922
CASE NAME: TREK HOLDINGS VS. CAREPATROL FRANCHISE
*HEARING ON MOTION IN RE: CONTINUE TRIAL IN ORDER TO HEAR DEFENDANTS' MOTION FOR SUMMARY JUDGMENT
FILED BY: CAREPATROL FRANCHISE SYSTEMS, LLC
TENTATIVE RULING:
Off calendar. Withdrawn by moving party.

2. 9:00 AM CASE NUMBER: C22-02520
CASE NAME: ETIENNE VS. RICHMOND AMERICAN HOMES OF CALIFORNIA, INC.
*HEARING ON MOTION IN RE: VACATE DISMISSAL
FILED BY: ETIENNE, LINSAY
TENTATIVE RULING:

Plaintiffs' motion to set aside the July 23, 2025, dismissal of this action, pursuant to CCP section 473(b), is **granted**.

A Case Management Conference is set for **March 26, 2026, at 8:30 a.m. in Department 16**. The parties are ordered to file and serve a completed Case Management Statement at least 15 calendar days before the Case Management Conference.

Background

This is a construction defect action filed in 2022 by multiple homeowner plaintiffs against Richmond American Homes of California, Inc. and related entities. The case proceeded through 2024 and 2025 with the court setting a series of case management conferences (CMCs) and issuing orders concerning plaintiffs' appearances and prosecution of the action. Plaintiffs' counsel appeared at certain CMCs, including hearings on October 30, 2024, and March 25, 2025, at which subsequent hearing dates were set. During this period, the court issued multiple notices and orders relating to CMCs and an Order to Show Cause (OSC) regarding dismissal for failure to prosecute.

Plaintiffs did not file CMC statements or appear at several subsequent hearings. On July 23, 2025, the court held an OSC re: dismissal for failure to appear at the CMC and failure to prosecute. Plaintiffs did not appear at that hearing. The court dismissed the action without prejudice on July 23, 2025 for failure to appear and prosecute the case.

On August 14, 2025, Plaintiffs filed a motion to set aside the dismissal of this action pursuant to the mandatory and discretionary relief provisions of CCP section 473(b). The motion was accompanied by a declaration from plaintiffs' counsel, Saba Sheida, in which Mr. Sheida states that the dismissal was the result of "overlapping service interruptions – mail forwarding failures after [an] office relocation and multiple, prolonged, email server outages."

Defendants Richmond American Homes of California, Inc. and Richmond American Homes of Maryland, Inc. filed an opposition on January 14, 2026, together with a declaration of defense counsel describing the procedural history, service of notices, and defendants' position regarding the reasons for plaintiffs' failure to prosecute the case.

Legal Standard

Under CCP section 473(b), both discretionary and mandatory relief is available to parties when a case is dismissed. Discretionary relief is available under the statute as "the court may, upon any terms as may be just, relieve a party or his or her legal representative from judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (CCP § 473(b).)

Alternatively, mandatory relief is available when "accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect." (*Id.*) The purpose of the attorney affidavit provision is to "relieve the innocent client of the burden of the attorney's fault, to impose the burden on the erring attorney, and to avoid precipitating more litigation in the form of malpractice suits." (*Hu v. Fang* (2002) 104 Cal.App.4th 61, 64.)

An application for discretionary or mandatory relief from dismissal must be made no more than six

months after the dismissal is entered. (CCP § 473(b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143.)

“[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court[.]” (*Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 981-82.)

Analysis

Plaintiff moves for mandatory relief pursuant to CCP section 473, subdivision (b). Plaintiff argues relief under section 473(b) is mandatory because counsel attaches a declaration of fault due to counsel's mistake, inadvertence, surprise, or neglect, and the motion was timely filed within six months after the court dismissed the case.

Plaintiff's counsel asserts that he did not receive notice of the OSC re: dismissal or other hearing notices because of overlapping communication failures during the relevant period. Counsel states that his firm experienced mail-forwarding problems following an office relocation and prolonged email server outages that prevented access to firm email accounts for weeks at a time. Counsel further contends that opposing counsel sent notices and filings to an Irvine/Spectrum address that is not the firm's litigation service address and does not route construction-defect litigation mail to litigation staff. As a result of these issues, counsel maintains that he did not receive the OSC notice, was unaware of the hearing, and therefore failed to appear. Counsel characterizes the resulting dismissal as the product of inadvertent attorney error rather than intentional conduct and states that he takes responsibility for the procedural missteps.

Defendants dispute that Plaintiffs' counsel lacked notice of the OSC or other hearings and claim that the dismissal resulted from repeated failures to comply with case management obligations despite actual notice. Defendants assert that the court mailed notices of the CMCs and OSC directly to Plaintiffs' counsel and that defense counsel, pursuant to court order, provided notice of subsequent hearings by emailing Plaintiff's counsel and staff and by serving CMC and OSC statements with proofs of service. Defendants further note that Plaintiffs' counsel personally appeared at prior case management conferences at which future hearing dates were set in open court, yet failed to file required CMC statements, failed to appear at multiple hearings, and never raised any service or notice issues before the case was dismissed. Defendants characterize the conduct as a pattern of inattention or failure to prosecute, not excusable neglect.

Under CCP section 473(b), the court must grant relief from a judgment for “attorney neglect,” even inexcusable neglect, when an application for relief is made within six months after entry of judgment; is in proper form; and is accompanied by “an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.” For purposes of mandatory relief under section 473(b), counsel's errors need not be excusable. (*Billings v. Health Plan of America* (1990) 225 Cal.App.3d 250, 256.) Given counsel's declaration admitting fault for the failures leading up to the dismissal, the Court will grant mandatory relief.

Tliche v. Van Quathem (1998) 66 Cal.App.4th 1054, counsels in favor of vacating the dismissal. There, the trial court dismissed a case after plaintiff's counsel failed to appear at a hearing on an OSC re failure to file proof of service. The Court of Appeal reversed the dismissal, reasoning that service is a

task ordinarily controlled by counsel and there was no evidence in the record of client fault, prior sanctions, or a pattern of willful delay. This, the court held, violated governing principles under CCP section 575.2, subdivision (b), and Government Code § 68608, subdivision (b), which require courts to impose sanctions that are proportionate and consider attorney fault separately from client responsibility. (See also, *Levitz v. The Warlocks* (2007) 148 Cal.App.4th 531, 535-36; *Franklin Capital Corp. v. Wilson* (2007) 148 Cal.App.4th 187, 212; *Garcia v. McCutchen* (1997) 16 Cal.4th 469, 478.) So it is here. The procedural failures that led to dismissal were attributable to counsel, not Plaintiffs, and there is no evidence of prior sanctions or willful delay by Plaintiffs.

Defendants argue that vacating the dismissal would prejudice them because certain claims are now barred by applicable statutes of limitation and/or repose. The court acknowledges this argument but concludes that such asserted prejudice does not preclude mandatory relief under CCP section 473(b). The obligation to continue litigating the case is not cognizable prejudice. Rather, a party opposing relief must present evidence of actual prejudice such as missing witnesses, destroyed evidence, or similar circumstances affecting the ability to defend the case. (See, e.g., *Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 740.)

Attorney Fees and Costs Under CCP § 473(b)

Where relief is granted under the mandatory relief prong of CCP section 473(b), the court shall direct the attorney to pay reasonable compensatory attorney's fees and costs to the opposing party. Because relief is granted based on an affidavit of attorney fault, Plaintiffs' counsel is obligated to pay Defendants' reasonable attorney fees and costs incurred in opposing the motion. Defendants may contest the tentative ruling and request a continuance of the hearing for the limited purpose of submitting a declaration addressing the amount of fees sought.

3. 9:00 AM CASE NUMBER: C23-00293
CASE NAME: INTERSTATE FIRE & CASUALTY COMPANY VS. CHEVRON ENVIRONMENTAL MANAGEMENT COMPANY
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO MAGGIE BURRESON FOR DII CHEVRON ENVIROMENTAL AND CHEVRON USA
FILED BY: CHEVRON ENVIRONMENTAL MANAGEMENT COMPANY
TENTATIVE RULING:
Granted.

4. 9:00 AM CASE NUMBER: C23-02401
CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.
***HEARING ON MOTION IN RE: CONSOLIDATE RELATED CASES**
FILED BY: SEQUOIA EQUITIES, INCORPORATED
TENTATIVE RULING:
Before the Court is a motion by defendants Sequoia Equities, Inc. and Alder Creek Management, Inc. For the reasons set forth, the hearing on the motion is **continued to 9:00 a.m. on February 5, 2026.**

Background

This action is a putative class action ("Class Action") filed by Kiara Ross, Felicia Costa, and Mark Peipowski ("Class Plaintiffs") against Sequoia Equities, Incorporated, Alder Creek Management, Inc., and numerous other entities alleged to be owners of apartment buildings in which the plaintiffs and